

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

11. DAVID BELL V. MEGAN GUERRERO

24FL0556

On August 10, 2026, Petitioner filed a Request for Order (RFO) and Order Shortening Time (OST) seeking clarification of the issues at trial and potential continuance of the trial date. The court granted the OST on August 11, 2026, setting the matter for a hearing on August 20, 2026, at 1:30 PM and directing Petitioner to serve Respondent on or before August 11, 2026. The court directed Respondent to file a Responsive Declaration on or before August 18, 2026. Proof of Service shows Respondent was electronically served on August 11, 2026.

Respondent filed a Responsive Declaration on August 17, 2026. It was served the same day. Respondent opposes the request to continue the trial and asserts the applicability of Family Code section 3044 has been a known issue since the matter was set for trial in May and by way of Respondent's briefing in June. Respondent requests the court go forward with trial.

The court has read and considered the filings as outlined above. The court finds the issue of whether Family Code section 3044 applies to Petitioner was set for trial when the matter was initially set for an evidentiary hearing in May of this year. The court finds Petitioner has been on notice that it was an issue since May 22, 2026. Further, the court finds Petitioner was aware of the issue when he last requested the trial date be continued. While the issue of Petitioner's fifth amendment rights has not previously been raised, the court finds that issue may be raised as necessary at trial. Petitioner's request to continue the trial is denied. The court confirms the September 21, 2026, hearing set at 8:30 Am in Department 5.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT FINDS THE ISSUE OF WHETHER FAMILY CODE SECTION 3044 APPLIES TO PETITIONER WAS SET FOR TRIAL WHEN THE MATTER WAS INITIALLY SET FOR AN EVIDENTIARY HEARING IN MAY OF THIS YEAR. THE COURT FINDS PETITIONER HAS BEEN ON NOTICE THAT IT WAS AN ISSUE SINCE MAY 22, 2026. FURTHER, THE COURT FINDS PETITIONER WAS AWARE OF THE ISSUE WHEN HE LAST REQUESTED THE TRIAL DATE BE CONTINUED. WHILE THE ISSUE OF PETITIONER'S FIFTH AMENDMENT RIGHTS HAS NOT PREVIOUSLY BEEN RAISED, THE COURT FINDS

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THAT ISSUE MAY BE RAISED AS NECESSARY AT TRIAL. PETITIONER'S REQUEST TO CONTINUE THE TRIAL IS DENIED. THE COURT CONFIRMS THE SEPTEMBER 21, 2026, HEARING SET AT 8:30 AM IN DEPARTMENT 5.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.